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CSAA INSURANCE EXCHANGE;

CARBONE, SMITH & KOYAMA; and

MICHAEL R. CHAMBERS

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

vs.

SUBHI ABDELHALIM; CSAA

INSURANCE EXCHANGE; DOES 1

through 50, inclusive,

Defendants.

Case No.: CGC-25-631801

**DEFENDANTS' REPLY TO PLAINTIFF'S
OPPOSITION TO DEFENDANTS' SPECIAL
MOTION TO STRIKE PLAINTIFF'S FIRST
AMENDED COMPLAINT PURSUANT TO
C.C.P. § 425.16 (ANTI-SLAPP MOTION)**

[CODE CIV. PROC. § 425.16]

DATE: MAY 12, 2026

TIME: 9:00 A.M.

DEPT: 301

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

05/05/2026

Clerk of the Court

BY: SANDRA SCHIRO

Deputy Clerk

1 Defendants CSAA INSURANCE EXCHANGE; CARBONE, SMITH & KOYAMA; and
2 MICHAEL R. CHAMBERS (Collectively, “Defendants”) hereby submit the following in Reply to the
3 Opposition filed by Plaintiff FRANCISCUS DYLAN ROSARIO to Defendants’ Special Motion to Strike
4 Plaintiff’s First Amended Complaint Pursuant to C.C.P. § 425.16 (ANTI-SLAPP MOTION):

5 **I. INTRODUCTION**

6 Plaintiff’s Opposition to the Anti-SLAPP motion confirms that the claims arise from litigation
7 conduct and communications made in connection with the underlying proceeding, notwithstanding
8 Plaintiff’s attempt to characterize the action as targeting “noncommunicative institutional conduct,” the
9 allegations themselves demonstrate that the asserted wrongdoing is defined by protected petitioning
10 activity.

11 Under controlling California authority, such claims arise from protected activity. The Anti-SLAPP
12 statute exists to prevent precisely this type of suit. Indeed, Plaintiff’s entire FAC seeks to unwind a valid
13 jury verdict and this Court’s judgment, targeting every person and entity that comprised any part of the
14 defense team from that underlying litigation. Plaintiff’s Opposition does not alter the governing analysis
15 and fails to meet the burden at either step of the Anti-SLAPP statute.

16 The dispositive inquiry is whether the claims arise from protected activity and whether Plaintiff
17 can demonstrate a probability of prevailing. Plaintiff fails on both fronts.

18 **II. THE OPPOSITION IS PROCEDURALLY PROBLEMATIC**

19 As a threshold issue, Plaintiff’s Opposition to the Anti-SLAPP motion contains a host of defects.
20 First, Plaintiff’s *operative* Opposition—filed on April 21, 2026—is forty (40) pages in length. This is a
21 clear violation of the page limit imposed by Cal. Rules of Court, Rule 3.1113(d), allowing a maximum of
22 15 pages. Second, Plaintiff has filed no fewer than four (4) separate Memoranda of Points and Authorities
23 in Opposition to Defendants’ Anti-SLAPP motion.¹

24 Plaintiff persists in litigating this case as if the rules do not apply to him. Plaintiff’s procedural
25 gamesmanship in filing multiple, duplicative Oppositions to the Anti-SLAPP flies in the face of the Rules
26 of Court and is intended to overburden and harass Defendants. Defendants’ counsel has made clear to

27 ¹ Plaintiff’s operative Opposition, to which this Reply is directed, was filed on April 21, 2026. Thereafter, on May 1, 2026,
28 Plaintiff filed a flurry of three (3) additional Memoranda in opposition to Defendants’ Anti-SLAPP motion. These May 1
Memoranda are not addressed in this Reply, as they were late-filed, prejudicial, noncompliant with the Rules of Court, and
merely repetitive of the arguments contained in the operative Opposition.

1 Plaintiff that such filing practices (multiple Oppositions, “bench briefs”, and etc.) are inappropriate;
2 however, Plaintiff persists in such filings. Defendants request the Court consider issuing sanctions against
3 Plaintiff for such abuses.

4 **III. STEP ONE: THE CLAIMS ARISE FROM PROTECTED ACTIVITY**

5 Plaintiff’s Opposition essentially concedes that the alleged conduct is protected litigation conduct
6 and communicative acts. In that sense, the Opposition is really a non-opposition.

7 At step one, Defendants must show that the claims arise from protected activity. Defendants have
8 demonstrated as much. Protected activity includes statements or conduct made in connection with
9 litigation. Code Civ. Proc., § 425.16, subd. (e)(2). Plaintiff identifies the gravamen of the claims as
10 including “out-of-court communications,” “court-facing misrepresentations,” and conduct that allegedly
11 induced procedural rulings. These are, by definition, communicative acts made in connection with
12 ongoing litigation.

13 Under *Park*, the Court must identify the injury-producing act. Park instructs that “a claim may be
14 struck only if the speech or petitioning activity *itself* is the wrong complained of, and not just evidence of
15 liability or a step leading to some different act for which liability is asserted.” (*Park v. Board of Trustees*
16 *of California State University* (2017) 2 Cal.5th 1057, 1061.) Plaintiff’s own articulation confirms that the
17 injury arises from communications and litigation conduct, indeed even conceding in Opposition that the
18 following acts were the “wrong[s] complained of”:

- 19 1. Out-of-court communications that led Plaintiff to believe authentication of evidence was
20 uncontested
- 21 2. The file transfer without proper conveyance of production history
- 22 3. Court-facing misrepresentations that induced procedural rulings narrowing Plaintiff’s
23 windows
- 24 4. Tribunal reliance producing structural hearing impairment.
25 (*Opp.* at p. 11: lines 6-11.)

26 Plaintiff’s own characterization of the acts concedes that the conduct was both i) litigation related
27 activity; and ii) communicative in nature. This is not a close call. Plaintiff squarely targets all members of
28 the defense team for beating him at trial, and all the steps taken to obtain a defense verdict. Plaintiff’s
attempt to reframe the claims as “institutional conduct” or characterize these acts as “evidentiary support”
does not alter their protected nature. Indeed, as Park makes clear, “[c]rucially, the defendant’s act
underlying the plaintiff’s cause of action must *itself* have been an act in furtherance of the right of petition

1 or free speech.” (*Park, supra*, 2 Cal.5th at 1063.) Plaintiff’s entire theory in the FAC necessarily depends
2 on targeting Defendants’ communications (pre-trial, and at trial) to establish liability. This is precisely the
3 circumstance where the Anti-SLAPP statute applies.

4 **IV. PLAINTIFF CANNOT AVOID ANTI-SLAPP THROUGH REFRAMING**

5 Plaintiff’s Opposition relies heavily on a distinction between conduct and communications. That
6 distinction is legally irrelevant where the alleged injury arises from communicative acts. Plaintiff argues
7 that the FAC’s claims survive because they include “noncommunicative” components such as file
8 transfers and institutional oversight. However, Plaintiff concedes that the alleged harm arises from how
9 those acts affected litigation, including Defendants’ making “misleading representations” about those acts,
10 the Court’s issuing evidentiary rulings, and ultimately the trial outcome.

11 Furthermore, Plaintiff fails to cite any legal authority for the proposition that Defendants’ counsel
12 (CARBONE and CHAMBERS) failing to properly transfer file materials to substituted counsel (PHILLIP
13 SPALLAS) does not also fall within the Anti-SLAPP statute. These acts (transferring a defense file via
14 email correspondence) are certainly communicative insofar as they require communication qua
15 communication to effectuate such defense team file transfer. Moreover, the act of managing a litigation
16 file is clearly litigation conduct, and Plaintiff cites no legal principle to undermine this argument.

17 Plaintiff cannot avoid Anti-SLAPP by recasting protected conduct under a different label. “The
18 anti-SLAPP statute’s definitional focus is not the form of the plaintiff’s cause of action but, rather, the
19 defendant’s *activity* that gives rise to his or her asserted liability—and whether that activity constitutes
20 protected speech or petitioning.” (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 92.) Where the claim depends
21 on communications made in connection with litigation, as is true here, it arises from protected activity.

22 **V. STEP TWO: PLAINTIFF CANNOT ESTABLISH A PROBABILITY OF PREVAILING**

23 At step two, Plaintiff must demonstrate “minimal merit” of his claim through admissible evidence.
24 (*Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 291.) Plaintiff fails to meet this burden.
25 Plaintiff’s Opposition relies on circular argument rather than admissible evidence and fails to address the
26 dispositive legal barriers.

27 Moreover, the evidence that Plaintiff references appears to be comprised largely of trial transcripts
28 from Plaintiff’s underlying jury trial; which only supports Defendants’ argument that all allegations target

protected litigation conduct. The claims are simply, irrevocably, barred by the litigation privilege. Plaintiff's own allegations confirm reliance on litigation communications, including representations regarding evidence and trial conduct, up to and including at trial.

The extrinsic fraud theory fails under *Kulchar* and *Stevenot*, as Plaintiff actively participated in the underlying proceeding, litigated the issues, and crucially Plaintiff had the opportunity to present to the Jury all the evidence he here complains about. As such, Plaintiff's entire FAC constitutes an impermissible collateral attack on this Court's prior entry of judgment. Plaintiff's true remedy for a jury verdict he did not like was an appeal, not this collateral attack.

Plaintiff's failure to provide admissible evidence establishing minimal merit is fatal at step two.

VI. PLAINTIFF'S REMAINING ARGUMENTS DO NOT ALTER THE ANALYSIS

Plaintiff's reliance on *Baral* and *Park* to argue that some conduct is unprotected is misplaced. Plaintiff's own articulation of the claims demonstrates that the alleged injury arises from communications and litigation conduct.

The Anti-SLAPP statute does not permit a plaintiff to isolate fragments of conduct divorced from the gravamen of the claim. For example, "[a]llegations of protected activity that merely provide context, without supporting a claim for recovery, cannot be stricken under the anti-SLAPP statute. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 394.) However, here, Plaintiff has targeted all the litigation acts of defense counsels from the underlying case—as well as CSAA's funding and directing of the defense from that litigation—but now tries to disclaim that litigation conduct of the defense is indeed the target. This does not pass the straight face test.

The Opposition also erroneously claims that CSAA is barred from asserting Anti-SLAPP protection based on the language in Code Civ. Proc. § 425.17. This analysis is flawed. Section 425.17 precludes Anti-SLAPP protection in narrow circumstances, specifically, when:

(1) The statement or conduct consists of representations of fact about that person's or a business competitor's business operations, goods, or services, that is made for the purpose of obtaining approval for, promoting, or securing sales or leases of, or commercial transactions in, the person's goods or services, or the statement or conduct was made in the course of delivering the person's goods or services.

(2) The intended audience is an actual or potential buyer or customer, or a person likely to repeat the statement to, or otherwise influence, an actual or potential buyer or customer, or the statement or conduct arose out of or within the context of a regulatory approval process,

1 proceeding, or investigation, except where the statement or conduct was made by a
2 telephone corporation in the course of a proceeding before the California Public Utilities
3 Commission and is the subject of a lawsuit brought by a competitor, notwithstanding that
4 the conduct or statement concerns an important public issue.

5 This Code section, limiting Anti-SLAPP protection is completely irrelevant here, where Plaintiff
6 was a third party and CSAA is alleged to have been actively involved in a pending litigation, in its “funding
7 and directing of the defense” of that litigation. Section 425.17 is simply irrelevant to this case.

8 **VII. CONCLUSION**

9 Plaintiff’s Opposition confirms that the claims arise from protected litigation activity and lack
10 minimal merit. Defendants respectfully request that this Court grant the special motion to strike in its
11 entirety and award attorneys’ fees in the amount of \$16,519.50.00 pursuant to Code of Civil Procedure
12 section 425.16, subd. (c).

13 Dated: May 5, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O’Connell

14 By _____
15 Chad S. Tapp
16 Tyler J. O’Connell
17 Attorneys for Defendants
18 CSAA INSURANCE EXCHANGE;
19 CARBONE, SMITH & KOYAMA; and
20 MICHAEL R. CHAMBERS
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PROOF OF SERVICE

At the time of service, I was over 18 years of age and not a party to this action. My business address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

On May 5, 2026, I served the following document: **DEFENDANTS' REPLY TO PLAINTIFF'S OPPOSITION TO DEFENDANTS' SPECIAL MOTION TO STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT PURUANT TO C.C.P. § 425.16 (ANTI-SLAPP MOTION).**

X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

Addressed as follows:

PLAINTIFF, IN PRO PER

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
soltrinox@gmail.com

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed on Sacramento, California on May 5, 2026.

Serena Blithe
Serena Blithe